

Given that the entire lodestar amount is almost twice the requested fees, the Court finds no fault.

The Court awards the requested fees of \$100,000.

The litigation costs are reasonable and are approved.

As to the requested representative payment of \$10,000, Mr. Villanueva attests that he participated in the litigation, kept informed about the litigation, and remained ready to participate fully in discovery and, if necessary, trial. He estimates his time spent at between 25 and 35 hours. Based on the criteria for evaluation of such requests set forth in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807 (particularly the size of the award relative to the recovery), the Court approves payments of \$7,500 each. The remainder reverts to the class.

#### **D. Discussion and Conclusion**

The moving papers sufficiently establish that the proposed settlement is fair, reasonable, and adequate to justify final approval. The Court needs to clarify the number of class members, although the final number does not affect the Court's determination; rather the Court requires information to be clarified to ensure accuracy.

The motion is granted, with the change in representative payments as indicated. Counsel are directed to prepare an order reflecting this tentative ruling, and the other findings in the previously submitted proposed order and a separate judgment. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented, the date for which should be obtained through consultation with the Department clerk. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

**11. 9:00 AM CASE NUMBER: C25-00481**  
**CASE NAME: MAURO OILVA VS. AMERICAN HONDA MOTOR CO., INC.**  
**\*HEARING ON MOTION IN RE: ATTORNEY'S FEES**  
**FILED BY: OILVA, MAURO**  
**\*TENTATIVE RULING:\***

Before the Court is Plaintiffs Mauro Oilva and Emerson Oilva's Motion for Attorney's Fees against Defendant American Honda Motor Company, Inc. Honda opposes the granting of fees.

This is a Song-Beverly Consumer Warranty Act (lemon law) case. The case resolved via settlement, which left the issue of fees and costs to the Court. The Court previously resolved the costs issue through the Memorandum of Costs and a Motion to Strike or Tax Costs. Plaintiff now seeks \$18,992.50 as fees.

As the prevailing party, pursuant both to Code of Civil Procedure section 998 and the terms of the 998 agreement itself, Oilva is entitled to reasonable attorney's fees pursuant to motion. Civil Code §

1794(d).

A court assessing a claim for fees under Civil Code section 1794, subdivision (d) is to use the lodestar as the start, to assess the reasonableness of the fee claim. (*Mikhaeilpoor v. BMW of North America* (2020) 48 Cal.App.5th 240, 246-247.) The party claiming fees has the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and reasonable in amount. (*Ibid*; *Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 816.)

"In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (*Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564.)

With regard to the determination of a reasonable hourly rate, the court may rely on its own knowledge and familiarity with the legal market as well as the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation to which that skill was applied, and declarations from other attorneys regarding prevailing fees in the community and rate determinations in other cases. (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 41.)

The Court first notes a procedural issue not identified by Oilva. Honda submitted an Opposition Memorandum that was 10 pages, but then put significant substance regarding the fee breakdown into the Declaration of Brandon Bell, which was 8 pages. The result is a combined submission that *potentially* exceeds the page limit. The Court will not strike any of the substance both because Oilva did not complain of this issue and because the Court is not certain that the page limit would have been exceeded by putting this substantive information into the memorandum but puts counsel on notice that page limits are not to be subject to creative avoidance.

Honda disputes Oilva's counsel's rates, offering critiques of the support for those rates, but no evidence to support those critiques. Honda does not provide evidence of any reasonable rates, including but not limited to those billed by its own counsel.

The Court agrees with Honda, however, that no multiplier is appropriate here. Plaintiffs have failed to demonstrate that this case required special skill, risk, or loss of opportunity. This was a standard lemon law case and Plaintiffs are adequately compensated by the rates requested.

With respect to the specific objections, the Court has reviewed the disputes in detail. As an initial matter, the Court does *not* fault counsel for the appropriate and careful use of templates. Using prior briefs, research, and discovery documents in a new case is efficient, when used appropriately and tailored to each case. It is the recovery of fees for work not actually done that is the inquiry the Court performs here.

The Court agrees that Oilva's anticipated hours on the Motion for Attorneys' fees is somewhat excessive—indeed so do Plaintiffs as they indicated they spent less time than predicted. Originally,

Kevin Jacobson was billing for a reply brief when Stephanie Hovhannisyan (a lower biller) did the work on the opening brief. On actual Reply, that moved to Derek Chipman, who billed 4.3 hours rather than the 5.3 anticipated. The actual time spent is somewhat more reasonable than anticipated, although still more than required given that Honda's opposition was relatively standard and the Court is aware that much of this work is repeated case-by-case. While counsel must certainly make sure to cite accurate cases, the nature of the briefing suggests that 0.8 to review the brief, 0.7 to review the declaration, 0.6 to research and 2.0 to draft includes overlapping and duplicative work on top of likely previously written work product. The Court would be surprised if preparation for and appearance at the hearing will be 2 hours, especially since the parties may waive hearing. The Court therefore reduces the Reply work, including the hearing, to 4.3 *total* hours, at \$495 per hour, which is \$2,128.50, instead of \$4,000.

Honda also challenges time spent on written discovery requests, noting the templated nature of these requests. Oilva fails to rebut this issue, noting only the quantity of requests. By way of example, it is unimpressive to the Court to note that 0.3 hours were spent on the declaration of necessity, a document that is routinely drafted in almost every single civil case and contains very little new substance. This is indication that counsel has overbilled for templated work. The Court will reduce the hours on written discovery from 3 to 1.5, resulting in a reduction of \$600.

Plaintiffs have adequately supported their need for and work on the deposition subpoena relating to the servicing dealership in this case, and the Court will grant the requested hours.

While Plaintiffs have shown that there was work and back-and-forth on the deposition of Honda's Person Most Qualified, they have failed to show that the hours claimed are reasonable. While Honda attached documents showing that the work did not appear original, Oilva attached no rebuttal to this argument. The Court will reduce Ryan Ardi's hours on this task from 6.2 to 4.9, resulting in a reduction of \$1,027.

Finally, while Honda served duplicative notices on Plaintiffs, that does not mean the work to respond to those was unique or required the time requested. The Court will reduce the hours on this task from 2.3 to 1.1, resulting in a reduction of \$474.

The Court therefore grants attorney's fees in the amount of \$12,021.50.

**12. 9:00 AM CASE NUMBER: C25-00518**  
**CASE NAME: MARIO GUATEMALA VS. MUHAMMAD ASHRAF**  
**MOTION TO BE RELIEVED AS COUNSEL RE CALIFORNIA WHEELS & TIRES LLC.**  
**FILED BY: CALIFORNIA WHEELS & TIRES LLC., A CALIFORNIA LIMITED LIABILITY COMPANY**  
**\*TENTATIVE RULING:\***

Good cause shown, the Motion to Be Relieved as Counsel is **granted**.